

25STCV15914 25STCV15914

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Case Number: 25STCV15914 Hearing Date: June 23, 2026 Dept: 507

Tentative Ruling

Judge Nicholas F. Daum, Department 507

HEARING DATE: June 23, 2026 TRIAL DATE: April 6, 2027

CASE: Skye Wright v. PIH Health Physicians, et al.

CASE NO.: 25STCV15914

MOTION FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant PIH Health Good Samaritan Hospital ("Hospital")

RESPONDING PARTY(S): Plaintiff Skye Wright (Non-opposition)

TENTATIVE RULING:

Hospital's Motion for Summary Judgment is GRANTED.

Moving Party to give notice.

BACKGROUND

This is a medical malpractice action. Wright alleges that the defendants were negligent in the provision of medical care, causing the loss of her unborn baby.

DISCUSSION:

Hospital moves for summary judgment. The hospital has presented expert testimony establishing that the Hospital staff complied with the standard of care, and that the physicians were not agents of the Hospital. Wright does not oppose the motion, and has submitted a statement affirmatively indicating that there is no opposition. The Court therefore grants summary judgment as to the Hospital.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a pleading or claim and, if not, to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-82.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ Proc. § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) The lack of opposition by a plaintiff is not grounds to grant a motion for summary judgment if a defendant cannot meet their initial burden of proof. (See Thatcher v. Lucy Stores, Inc. (2000) 79 Cal.App.4th 1081, 1087.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Professional Negligence

The Hospital moves for summary judgment. The undisputed evidence establishes that the attending physicians and nursing staff complied with the standard of care and did not cause the loss of Wright's baby. Because Wright does not oppose the motion, the Court finds that the Hospital is entitled to summary judgment on this basis.

The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.) In a medical negligence action, the standard of care is a matter that must be established by expert testimony. (See Howard v. Owens Corning (1999) 72 Cal.App.4th 621, 632-33.) The causal connection between the negligent conduct and the injury is similarly a matter of expert testimony, and that testimony must establish that the injury was more likely than not the result of medical negligence. (Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402-403.)

According to the undisputed evidence, Wright presented to the Hospital on June 30, 2024 with complaints of cramping, abdominal pain, and pink discharge. (Separate Statement of Undisputed Material Facts No. 1, 13.) Hospital nursing staff attempted to take the heart rate of Wright's fetus, but were unable to do so. (SSUMF Nos. 2-3, 14-15.) Dr. Varun Khetan attempted a bedside ultrasound, but also could not obtain the fetus's heart rate. (SSUMF No. 4, 16.) Dr. Khetan suggested a formal ultrasound, and Wright agreed. (Id.) The ultrasound confirmed the loss of Wright's baby, and Dr. Khetan discussed a plan of care with Wright. (SSUMF Nos. 5-6, 17-18.) Wright agreed to vaginal delivery, and her baby was delivered stillborn at 4:40 AM on July 1. (SSUMF No. 7, 19.) The Hospital presents a declaration from Joseph Ouzonian, M.D., a board-certified OBGYN with extensive experience in clinical practice. (Declaration of Joseph Ouzonian ISO Mot. ¶ 2.) Dr. Ouzonian states

that, based on his review of the records, his training, and his experience, the residents, nurses, and nonphysician staff all acted within the standard of care in treating Wright. (SSUMF Nos. 9-12.) Dr. Ouzonian concurs with the Forensic and Surgical Pathologist's conclusion that Wright lost her baby due to complications from pre-eclampsia, and that the baby had passed before Wright came to the hospital on June 30. (SSUMF No. 21.)

The Hospital has presented substantial evidence tending to prove that it did not breach the standard of care and that no act or omission was responsible for the death of Wright's baby. Because Wright formally does not oppose this motion, the Court finds that the Hospital has carried its burden and that there is no triable issue of material fact on this point.

Ostensible Agency

The Hospital also argues that the physician defendants were neither the actual nor ostensible agents of the Hospital, and thus the Hospital cannot be liable for any act or omission by the doctors.

A principal is liable for the acts of an ostensible agent when the principal "intentionally, or by want of ordinary care, causes a third person to believe another to be his agent who is not really employed by him." (Civ. Code § 2300; see also § 2317.) A principal is bound by the acts of an ostensible agent "to those persons only who have in good faith, and without want of ordinary care, incurred a liability or parted with value, upon the faith thereof." (Civ. Code § 2334.) As applied to hospitals, the first element is satisfied when a hospital holds itself out to the public as a provider of care, and reliance exists when the plaintiff "looks to" the hospital, rather than an individual physician, for services. (*Mejia v. Community Hospital of San Bernardino* (2002) 99 Cal.App.4th 1448, 1453-54.) Put differently, "unless the patient had some reason to know of the true relationship between the hospital and the physician—i.e., because the hospital gave the patient actual notice or because the patient was treated by his or her personal physician—ostensible agency is readily inferred." (*Id.* at 1454-55.)

Here, the Hospital states that, upon her admission on June 30, Wright signed a Conditions of Admissions document which stated that physicians were not agents or employees of the Hospital. (SSUMF NO. 23.) The Hospital has thus presented evidence that Wright was given actual notice of the true relationship between the Hospital and the physicians. Because Wright has declined to oppose the motion, the Court finds that there is no triable issue of fact on this point.

Because there is no dispute of material fact regarding the Hospital staff's compliance with the standard of care, the cause of death of Wright's child, and the agency relationship between the physicians and the Hospital, the Hospital is entitled to summary judgment.

CONCLUSION:

Accordingly, Hospital's Motion for Summary Judgment is GRANTED.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: June 23, 2026 _____

Nicholas F. Daum

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.